

NOTE: This bill has been prepared for the signatures of the appropriate legislative officers and the Governor. To determine whether the Governor has signed the bill or taken other action on it, please consult the legislative status sheet, the legislative history, or the Session Laws.



SENATE BILL 26-059

BY SENATOR(S) Cutter and Ball, Exum, Gonzales J., Hinrichsen, Jodeh, Kipp, Lindstedt, Wallace, Weissman, Coleman;
also REPRESENTATIVE(S) Lindsay, Nguyen.

CONCERNING A PROHIBITION ON A MEMBER OF THE GENERAL ASSEMBLY
HOLDING MULTIPLE ELECTED OFFICES.

Be it enacted by the General Assembly of the State of Colorado:

SECTION 1. In Colorado Revised Statutes, **add** 2-2-328 as follows:

2-2-328. Members of the general assembly prohibited from holding multiple elected offices.

(1) COMMENCING WITH THE FIRST REGULAR SESSION OF THE SEVENTY-SIXTH GENERAL ASSEMBLY, AND DURING EACH REGULAR SESSION THEREAFTER, EXCEPT AS PROVIDED IN SUBSECTION (2) OF THIS SECTION, A MEMBER OF THE GENERAL ASSEMBLY SHALL NOT HOLD ANY OTHER ELECTED OFFICE WHILE SERVING AS A MEMBER OF THE GENERAL ASSEMBLY. THIS SECTION APPLIES TO A MEMBER OF THE GENERAL ASSEMBLY UPON TAKING THE OATH OF OFFICE OF THE GENERAL ASSEMBLY AS REQUIRED BY SECTION

Capital letters or bold & italic numbers indicate new material added to existing law; dashes through words or numbers indicate deletions from existing law and such material is not part of the act.

2 (2) OF ARTICLE V OF THE STATE CONSTITUTION.

(2) THE PROVISIONS OF SUBSECTION (1) OF THIS SECTION DO NOT APPLY IF:

(a) THE MEMBER OF THE GENERAL ASSEMBLY HOLDS A SPECIAL DISTRICT ELECTED OFFICE;

(b) THE MEMBER OF THE GENERAL ASSEMBLY HAS LESS THAN ONE YEAR REMAINING IN THEIR TERM IN ANOTHER ELECTED OFFICE AT THE TIME THE MEMBER TAKES THE OATH OF OFFICE OF THE GENERAL ASSEMBLY AS REQUIRED BY SECTION 2 (2) OF ARTICLE V OF THE STATE CONSTITUTION;

(c) THE MEMBER OF THE GENERAL ASSEMBLY HAS LESS THAN ONE YEAR REMAINING IN THEIR TERM IN THE GENERAL ASSEMBLY AT THE TIME THE MEMBER TAKES THE OATH OF OFFICE OF ANOTHER ELECTED OFFICE; OR

(d) THE MEMBER OF THE GENERAL ASSEMBLY IS A SENATOR WHO IS IN THE MIDDLE OF THEIR TERM AT THE BEGINNING OF THE FIRST REGULAR SESSION OF THE SEVENTY-SIXTH GENERAL ASSEMBLY.

SECTION 2. Safety clause. The general assembly finds, determines, and declares that this act is necessary for the immediate preservation of the public peace, health, or safety or for appropriations for

the support and maintenance of the departments of the state and state institutions.

James Rashad Coleman, Sr.
PRESIDENT OF
THE SENATE

Julie McCluskie
SPEAKER OF THE HOUSE
OF REPRESENTATIVES

Esther van Mourik
SECRETARY OF
THE SENATE

Vanessa Reilly
CHIEF CLERK OF THE HOUSE
OF REPRESENTATIVES

APPROVED _____
(Date and Time)

Jared S. Polis
GOVERNOR OF THE STATE OF COLORADO